Equally clear is the proposition that a government may not require an individual to relinquish rights guaranteed him by the First Amendment as a condition of public employment. *E. g., Elrod* v. *Burns, supra,* at 357–360, and cases cited; *Perry* v. *Sindermann,* 408 U. S. 593; *Keyishian* v. *Board of Regents,* 385 U. S. 589. The appellants argue that they fall within the protection of these cases because they have been prohibited, not from actively associating, but rather from refusing to associate. They specifically argue that they may constitutionally prevent the Union's spending a part of their required service fees to contribute to political candidates and to express political views unrelated to its duties as exclusive bargaining representative. We have concluded that this argument is a meritorious one.

One of the principles underlying the Court's decision in *Buckley* v. *Valeo,* 424 U. S. 1, was that contributing to an organization for the purpose of spreading a political message is protected by the First Amendment. Because "[m]aking a contribution . . . enables like-minded persons to pool their resources in furtherance of common political goals," *id.,* at 22, the Court reasoned that limitations upon the freedom to contribute "implicate fundamental First Amendment interests," *id.,* at 23.[30]

The fact that the appellants are compelled to make, rather than prohibited from making, contributions for political purposes works no less an infringement of their constitutional rights.[31] For at the heart of the First Amendment is the

[30] See also *Shelton* v. *Tucker,* 364 U. S. 479 (state statute which required every teacher to file annually an affidavit listing every organization to which he had belonged *or regularly contributed* is unconstitutional because of its unlimited and indiscriminate interference with freedom of association).

[31] This view has long been held. James Madison, the First Amendment's author, wrote in defense of religious liberty: "Who does not see . . . [t]hat the same authority which can force a citizen to contribute three pence only of his property for the support of any one establishment, may